

# State By Jnanabharathi vs For The Offences Punishable ... on 29 May, 2023

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KABC031198602017

IN THE COURT OF THE IX ADDL.CHIEF METROPOLITAN  
MAGISTRATE, AT BENGALURU.

Dated this the 29th day of May 2023

Present : Sri.R.Mahesha.  
B.A.L., LL.B.,  
IX Addl.C.M.M., Bengaluru.

## JUDGMENT

- |                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
|-------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1.C.C.No.         | CC 29742/2017                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 2.Date of offence | 01/03/2017                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 3.Complainant     | State by Jnanabharathi<br>Police Station.                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 4.Accused         | 1. Muralidhar,<br>S/o Late Venkatesh<br>Aged about 37 years,<br><br>2. Sarojamma,<br>W/o Late Venkatesh<br>Aged about 58 years,<br><br>3. Smt.Meenakshi,<br>W/o Siddaraju @ Siddaraju<br>Aged about 34 years,<br><br>4. Smt.Savitha,<br>W/o Dhanunjaya<br>All R/No.321/174,<br>Bhairaveshwara Nagara,<br>Manganahalli Cross,<br>Bengaluru.<br><br>5. Ashwathnarayana,<br>S/o Muniyappa,<br>Aged about 46 years,<br>R/No.6, Ullala New Town,<br>Bengaluru. |

6. C.N.Siddalinga @ Siddaraju,  
S/o.Nagaraju,  
Aged about 35 years,  
R/No.11,  
Bhairaveshwara Nagara,  
Manganahalli Cross,  
Bengaluru.

5. Offences U/Sec.498(A) r/w 34 of IPC

complained of and Sec.3 and 4 of Dowry Prohibition Act.

6.Plea Accused No.1 to 6 pleaded not guilty.

7.Final Order Accused No.1 to 6 are acquitted.

8.Date of Order 29-05-2023.

The Police Sub-Inspector of Jnanabharathi Police Station, Bengaluru has filed this charge sheet against the accused for the offences punishable U/Sec.498(A) and Sec.3 and 4 of Dowry Prohibition Act.

2. The brief facts of the prosecution case are that, on 05-02-2016, CW.1 and accused No.1 marriage solemnized as per Hindu customs in Chamundeshwari Kalyana Mantapa, Chamudeshwari layout, Ramanagara town. CW.4 did above marriage by expending all the expenditures. At the time of marriage, accused persons demanded CW.4 for cash of Rs.50,000/- and one gold ring finally it is agreed by CW.4 and she gave Rs.20,000/- cash and one gold chain, gold ring to accused No.1. After the marriage, CW.1 used to stay with accused persons in No.179, Balya Ashrama road, Bairaveshwaranagara, Manganahalli cross, Bengaluru. After the 2 months of marriage, all the accused persons took salary of CW.1 and they disturbing to lead martial life with accused No.1. Further all the accused demanded to bring further more dowry from her mother a sum of Rs.2,00,000/-. Therefore, all the accused persons with common intention have ill treated physically and mentally to CW.1 for the purpose of bringing further more dowry. All the accused persons thrown out CW.1 for not bringing demanded dowry. Hence, CW.1 lodged first information. The Station House Officer registered a case in Cr No.74/2017 for the offences punishable u/Sec.498(A) r/w 34 of IPC, u/s 3 and 4 of DP Act and submitted First Information Report to this Court. After investigation, Police Inspector of Jnanabharathi Police Station filed charge sheet for the said offences punishable u/Sec. 498(A) r/w 34 of IPC and Sec.3 and 4 of Dowry Prohibition Act against the accused No.1 to 6. Hence, they have committed the alleged offences.

3. Accused No.1 to 6 are on bail. On receipt of charge sheet, this court took the cognizance of the alleged offences and furnished copy of the prosecution papers to the accused persons. After hearing on charge, this Court has framed charge for the offences punishable U/Sec. 498(A) r/w 34 of IPC and Sec.3 and 4 of Dowry Prohibition Act for which accused persons pleaded not guilty and claimed

to be tried.

4. The prosecution, in order to prove its case, has examined 7 witnesses as PW.1 to PW.7 and got documents marked documents at Ex.P.1 to Ex.P.5 and closed the side of the prosecution evidence, and Statements u/Sec.313 of Cr.P.C. recorded, read over and explained in the vernacular language of the accused No.1 to 6, wherein accused No.1 to 6 have denied the incriminating circumstances appeared against them as false and did not choose to lead defence evidence. As such, the matter was posted for arguments.

5. I have heard the arguments on both sides.

6. The prosecution has been examined CW.1 as PW.1, She being informant of this case, CW.4 as PW.2, she being mother of CW.1, sister of CW.1, CW.2 as PW.4 he being husband of CW.6, CW.6 as PW.6 she being younger sister of CW.1. All the witnesses consistently deposed on oath that CW.1 and accused No.1 marriage solemnized as per their prevailing customs on 05.02.2016 in Chamundeshwari Kalyana Mantapa, Ramanagara, before marriage both family members sat together and discussed about dowry and other things. CW.4 borne all the marriage expenses a worth of Rs.3,00,000/-. At the time of marriage of Cw.1 and accused No.1, CW.4 gave to accused No.1 15 grams of gold chain, 8 grams gold ring, Rs.50,000/- cash. After the marriage, accused persons and Cw.1 were stayed in Kalyana nagara, Bengaluru for a period of 15 days. After that they shifted their house at Ullal, Bengaluru. The accused No.1 has not look proper manner and he always did not come to house during night. There is no intimacy between CW.1 and accused No.1. Further CW.1 specifically stated in her chief examination she resided with accused No.1 in Ullal, Bengaluru and all the accused persons stayed with accused No.1. They have no separate bed room for sleeping during night. The sisters and brothers of accused No.1 gave ill treatment to Cw.1 she requested to accused No.1 to have a separate house but accused No.1 physically assaulted to CW.1 When she went to her mother house for Ashada the accused persons vacated rented house which is located at Ullal without informing address of new house. After she came back she herself searched house of accused No.1 to 6. The said house also has not separate bed room. All the accused persons giving ill treatment to CW.1 during stay with accused persons. Therefore, CW.1 lodged FIS against accused persons as per Ex.P.1 and police officers came and enquired about the incident and drawn spot panchanama in the house of accused persons as per Ex.P.2. CW.1 identified marriage photos and invitation. Other staff witnesses stated the police officers enquired them they gave statement before police officers regarding alleged incident. All the witnesses identified accused No.1 to 6 before the court.

7. All the witnesses subjected cross examination by the accused counsel in the cross examination Pw.2 admitted that as per their caste custom usually the bride side persons doing all marriage expense and all there is a customary practice in their caste at the time of marriage they gave gift like cloths, cash, to bride-groom. Further PW.2 denied the suggestion of accused that before this marriage CW.1 falling in love with other boy friend she was not interested in marry accused No.1. Further PW.2 admitted in the cross examination in the year 2020 CW.1 get second marriage with other person. She denied other formal suggestions made by the accused counsel.

8. In the cross examination PW.1 sated that she done degree. Before this marriage she doing work as data entry operator at A.P.M.C, Ramanagara. After the marriage she did work for a period of one month as data entry operator at A.P.M.C, Ramanagara. Further it is elicited in the cross examination before marriage accused No.1 told with CW.1 he was doing driver job in school bus RPC layout, Vijayanagara. They belong to Gangamatastha caste as per their caste customary practice they usually marriage expense borne by bride side peoples and further it is also admitted by PW.1 that as per their caste custody marry practice at the time of marriage they usually gave gift like cash, gold, cloth to bride-groom. Further she denied the suggestion of accused No.3 to 6 are not at all resided with accused No.1. Further she admitted in the cross examination that there is no physical relationship with Cw.1 and accused No.1 since marriage and till date. Further she admitted in the cross examination that in the year 2021 she married another person. Further it is admitted by PW.1 in cross examination that she did not get divorce from accused No.1 for getting second marriage. Further it is elicited in the cross examination that accused No.1 has made separate house at Kalyana nagara, on the demand made by Cw.1. After made separate house CW.1 has not with cordial relation with A.1. Further PW.1 volunteer before this court that there is also no separate room for sleeping couples. Further it is admitted by PW.1 that in Ex.P.1 she did not mentioned about cash, jewels and marriage expenses to gave accused No.1. Further she denied the suggestion of accused that before marriage of A.1 she was in love with other person. She herself giving ill treatment to accused persons CW.1 without taking divorce from accused No.1 and married other person. The accused No.1 to 6 have never ill treated to Cw.1. She married accused No.1 under the pressure of her family members. She denied other formal suggestions made by the accused counsel.

9. The prosecution has been examined Cw.8 as Pw.5. He specifically deposed on oath that he know the accused persons and CW.4. She/CW.4 working with him. The marriage of CW.1 and A.1 solemnized in the year 2016, February at Chamundeshwari Kalyana mantapa, Ramanagara as per Hindu Customs. CW.4 made expenditure for the purpose of said marriage a total sum of Rs.3,00,000/- and she gave 15 gram gold chain, 8 gram gold ring and cash of Rs.50,000/- to accused No.1. After the marriage accused No.1 and CW.1 lived happily for a period of 1 month. CW.1 told all ill treatment given by accused No.1 to 6 to CW.1 during stay with them when she came during ashada to this witness.

10. It is relevant to note that PW.3 and PW.4 examined requested further time for cross examination. This court rejected prayer of accused counsel and took cross of PW.3 and PW.4 as nil on 15.07.2022. Further it is relevant to note that on 02.11.2022 the accused No.1 to 6 have filed application for recall of PW.1 to PW.5 for the purpose of cross examination. The said application after contest allowed on 10.11.2022. This court issued process of summons, witness warrant and proclamation against PW.3 to 5. Despite that it could not possible to secure presence of PW.3 to 5. Therefore, PW.3 to Pw.5 evidence ordered as discarded and PW.3 to 5 taken as not tender for cross examination and dropped out vide order dated 18.01.2023.

11. Further the prosecution has been examined CW.6 as PW.6 she being younger sister of Cw.1 and daughter of Cw.4 she specifically deposed on oath that the marriage of Cw.1 with A.1 solemnized in the year 2016, February in Chamundeshwari kalayana mantapa, Ramangara as per Hindu customs. CW.4 made expenditure of Rs.3,00,000/- for the purpose of said marriage a total sum of

Rs.3,00,000/- and she gave 15 gram gold chain, 8 gram gold ring and cash of Rs.50,000/- to accused No.1. After the marriage CW.1 came to house of Cw.4 for ashada and Cw.1 told with Cw.6 that the accused persons vacated earlier house and made another house at Ullal, Bengaluru. On being enquiry of accused No.2 about A.1 he always saying A.1 went to job. She did not knew about ill treatment given to Cw.1 by accused No.1 to 6. There is no intimacy between Cw.1 and A.1. Accused No.1 not available in day and night. CW.1 gave complaint against accused persons she gave statement before police officers. This witness treated as hostile and learned Sr.A.P.P conducted lengthy cross examination with the permission of the court nothing worth has been elicited from the mouth of this witness regarding ill treatment given by accused No.1 to 6 to Cw.1.

12. The prosecution has been examined CW.9 as PW.7 she being partial Investigating Officer of this case deposed on oath before this court that on 24.04.2017 when she was on SHO duty CW.1 came and gave FIS, she received same, perused and registered the case against the accused persons. She prepared FIR and forwarded same to her Higher police officers and submit FIR to jurisdictional court for further needful. Further she deposed that on 25.04.2017 she proceeded with CW.1 to CW.3 to the place of alleged incident and she conducted spot panchanama as shown by CW.1 as per Ex.P.2 and later she handed over this case file to PI for further investigation. She has been subjected cross examination she clearly admitted that after receive Ex.P.1 she did not conducted any preliminary enquiry the neighbour residents of Cw.1's house. She did not gave any written notice to neighbour residents of CW.1 before drawing Ex.P.2. Further she clearly admitted that she did not took local witnesses to Ex.P.2. She denied other formal suggestion made by the accused counsel.

13. On perusal of entire oral and documentary evidence it appears that PW.1, and PW.2 are clearly and categorically admitted in the cross-examination that there is a customary practice in their caste as per that custom at the time of marriage of CW.1 with accused No.1 they voluntarily gave some gift like clothes, gold and cash and there is no demand from the side of accused persons. Further it is relevant to note that it is admitted and proved from the facts that CW.1 got 2nd marriage without obtaining divorce from accused No.1. Further it is admitted by PW.1 herself that there is no physical relation between CW.1 and accused No.1 since marriage till date. Further it is relevant to note that CW.1 mainly stated her grievance before this Court that there is no separate room for couples due to want of separate room there is a galata took place between them. But there is no direct or eye witness evidence from the side of prosecution in order to prove accused No.1 get house for rent in Kalyana Nagar and Ullal the said house has not bed room and absolutely there is no materials. Further PW.2, PW.3 and PW.4 are hear say witnesses and they are not the eye witnesses to the alleged incident. PW.6 is also hear say witness, she being elder sister of CW.1 she does not say anything about ill treatment given by the accused No.1 to 6. Further it is relevant to note that it is duty casted on prosecution to prove the accused No.2 to 6 are stayed with Cw.1 and accused No.1's house and all the accused persons gave ill treatment and demanding further dowry from her parents house to Cw.1 when she was stayed with them. There is no materials from the prosecution to show CW.1 and accused No.1 to 6 jointly lived in common house and accused No.1 to 6 are demanded further more dowry as alleged in the complaint. The prosecution has been cited CW.1 to 10, out of that the prosecution has been examined PW.1 to PW.7. CW.3, 5, 7 and 10 are dropped out vide order dated 28/3/2023. It is relevant to note that PW.3 and PW.4 examined on 15.07.2022 the counsel for accused No.1 to 6 requested further time for cross examination. This court rejected prayer of

accused counsel and took cross of PW.3 and PW.4 as nil on 15.07.2022. Further it is relevant to note that on 02.11.2022 the accused No.1 to 6 have filed application for recall of PW.1 to PW.5 for the purpose of cross examination. The said application after contest allowed on 10.11.2022. This court issued process of summons, witness warrant and proclamation against PW.3 to 5. Despite that it could not possible to secure presence of PW.3 to 5. Therefore PW.3 to PW.5 evidence ordered as discarded and PW.3 to 5 taken as not tender for cross examination and dropped out vide order dated 18.01.2023.

14. Thus on perusal of evidence of prosecution, it shows that except inconsistent and interested evidence of PW.1 to 6, absolutely there is nothing on record to prove that accused No.1 to 6 have ill treated PW.1 and they demanded and received dowry from her as per case of prosecution. Further inordinate delay in lodging first information is not explained. Further absolutely no independent witness or neighbours of matrimonial house and parent's house of PW.1 are examined to prove alleged ill treatment and assault by accused persons. Further the evidence of PW.1 to 6 is inconsistent with averments of Ex.P.1 and same does not help the prosecution in any manner to prove alleged offences on part of accused persons. For these reasons, the prosecution has failed to prove beyond reasonable doubt that the accused No.1 to 6 have committed alleged acts of ill-treatment and demand of dowry and thereby they have committed offences punishable u/Sec.498 r/w Sec.34 of IPC and Sec.3 and 4 of Dowry Prohibition Act. So no evidence from the side of prosecution to prove the alleged offence against the accused No.1 to 6. So it creates serious doubt regarding the case of the prosecution. Therefore, the prosecution has failed to prove the guilt of the accused No.1 to 6 beyond reasonable doubt. Hence, this Court proceed and pass the following:

ORDER Acting under Section 248(1) of Cr.P.C., accused No.1 to 6 are hereby acquitted of the offences punishable u/Sec. 498(A) of IPC and Sec.3 and 4 of Dowry Prohibition Act.

The bail bonds and surety bonds executed by accused No.1 to 6 shall continue for a period of two months from the date of this order and thereafter same shall stands cancelled automatically.

(Dictated to the stenographer directly on computer, corrected directly on computer and then pronounced by me in open court on this the 29 th day of May 2023).

(R.Mahesha) IX Addl.Chief Metropolitan Magistrate, Bengaluru.

#### ANNEXURE LIST OF WITNESSES EXAMINED ON BEHALF OF THE PROSECUTION:

|      |   |             |
|------|---|-------------|
| PW.1 | : | Soumya      |
| PW.2 | : | Sharadamma  |
| PW.3 | : | Asharani    |
| PW.4 | : | Jagadish    |
| PW.5 | : | Manjunath   |
| PW.6 | : | Nalinakshi  |
| PW.7 | : | Vanajakshi. |

LIST OF DOCUMENTS MARKED ON BEHALF  
OF THE PROSECUTION:

|        |   |              |
|--------|---|--------------|
| Ex.P.1 | : | Complaint    |
| Ex.P.2 | : | Panchanama   |
| Ex.P.3 | : | Wedding card |
| Ex.P.4 | : | Photos       |
| Ex.P.5 | : | FIR.         |

List of material objects marked on behalf of the prosecution:

NIL List of witnesses examined on behalf of the defence:

NIL List of documents marked on behalf of the defence:

NIL List of materials marked on behalf of the defence:

NIL.

IX ADDL.C.M.M. Bengaluru.

29/05/2023 Judgment pronounced in the open court (Vide separate order) ORDER Acting under Section 248(1) of Cr.P.C., accused No.1 to 6 are hereby acquitted of the offences punishable u/Sec. 498(A) of IPC and Sec.3 and 4 of Dowry Prohibition Act. The bail bonds and surety bonds executed by accused No.1 to 6 shall continue for a period of two months from the date of this order and thereafter same shall stands cancelled automatically.

IX ADDL.C.M.M. Bengaluru.

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